

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: December 5, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON COMPLAINANT'S MOTION TO EXPAND BRIEFING PAGE LIMITS

On December 3, 2024, Complainant filed a Motion for Expedited Relief Concerning Permission to Expand Page Limits of the Parties' Briefing as to Complainant's Opening Brief ("Motion"). Later on December 3, 2024, an order was issued requiring Respondents to respond to the motion by December 4, 2024. On December 4, 2024, Respondents filed a Response Opposing Complainant's Request to Expand Page Limits ("Opposition").

The motion seeks to expand Complainant's opening brief and Respondents' opposition brief page limits from eighty (80) pages to one hundred and forty (140) pages. Complainant states that there are five separate claims and during discovery, the parties "produced hundreds of thousands of pages of documents" and "conducted thirty-one depositions, including three expert depositions." Motion at 2-3. Complainant contends that: "Given the voluminous record in this case and the number of material issues to be addressed in the Parties' Briefings, there is good cause to extend the Commission's page limits on the Briefings by 75 percent" in order to prevent undue hardship and manifest injustice. Motion at 3.

Respondents assert that Complainant waited until the last moment to file its motion; expansive discovery and five causes of action do not equal good cause; and the findings of fact do not count against the page limit. Opposition at 1-2. Respondents further argue that page limits provide "for 'the just, speedy, and inexpensive determination of every proceeding;'" the current page limits are generous; and the request does not meet the extraordinary standard. Opposition at 2-3 (citing Commission Rule 1). Respondents contend that a "response to a 140-page brief obviously takes longer than a response to an 80-page brief," increasing the costs to Respondents. Opposition at 3 n.3. Respondents request that if the motion is granted, that Respondents' deadline for filing their opposition brief be extended by fourteen days. Opposition at 4.

Commission Rule 214(e) states:

All briefs filed pursuant to this section must ordinarily be limited to eighty (80) pages in length, exclusive of pages containing the table of contents, table of authorities, and certificate of service, unless the presiding officer allows the parties to exceed this limit for good cause shown and upon application filed not later than seven (7) days before the time fixed for filing of such a brief or reply.

46 C.F.R. Section 502.214(e). Moreover, the June 8, 2023, Scheduling Order states that: “Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).”

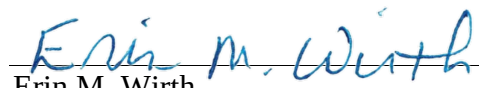
Commission Rule 214(e) permits the presiding officer to expand the page limits for good cause shown. Indeed, the Scheduling Order *sua sponte* essentially expands the eighty-page limit for the brief by not counting the proposed findings of fact and responses. Respondents are correct that the page limits are generous, however, they are not correct that the brief should be limited to matters of law. Rather, the analysis in the briefs should discuss both the legal and factual support for the parties’ positions, supported by citations to the proposed findings of fact and/or the appendix.

Here, the complexity of the proceeding, including the number of claims, size of the record, and unique issues raised justifies an expanded page limit. However, the request to expand the limit by sixty pages is not justified given the already generous nature of the page limit. Therefore, the page limit for both Complainant’s initial brief and Respondents’ opposition brief will be expanded by 25 pages to 105 pages each.

Complainant will require additional time to ensure their brief meets the revised page limit. Therefore, their deadline will be extended by three days. In addition, even though the motion is only granted in part, given the holidays and extension of time give to Complainant, Respondents’ request for an extra fourteen days to file their opposition brief is granted in full.

It is hereby **ORDERED** that the Motion be **GRANTED in part and DENIED in part**. Complainant’s opening brief and Respondents’ opposition brief are limited to 105 pages. The revised briefing schedule is:

Dec. 13, 2024 Complainant’s Opening Brief, Proposed Findings of Fact, and Appendix.
Jan. 28, 2025 Respondents’ Opposition Brief, Proposed Findings of Fact, Appendix, and Responses to Complainant’s Proposed Findings of Fact.
Feb. 18, 2025 Complainant’s Reply to Respondents’ Brief and Proposed Findings of Fact.


Erin M. Wirth
Chief Administrative Law Judge